

Smt Parvathamma Since Dead By Lrs vs The Asst Commissioner -Cum-Land on 30 May, 2013

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Bench: Ashok B. Hinchigeri

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 30TH DAY OF MAY 2013

BEFORE

THE HON'BLE MR. JUSTICE ASHOK B. HINCHIGERI

WRIT PETITION NOS.21814-21816 OF 2013 (LA-RES)

BETWEEN:

Smt.Parvathamma
Since dead by LRs

1. Sri Ramakrishnaiah,
S/o Late Parvathamma
Aged about 51 years.
2. Smt.Siddamma,
D/o Late Parvathamma,
W/o Chikkanna,
Aged about 45 years.
3. Sri Chidananda,
S/o Late Parvathamma,
Aged about 39 years.
4. Sri Karappa,
S/o Late Parvathamma,
Aged about 35 years.

Petitioners 1 to 4 are R/o
Boodathimmanahalli,
Hagalavadi Hobli,
Gubbi Tq,
Tumkur District - 572 223.

5. Smt.Chadramma,
D/o Late Parvathamma

W/o Ramanathappa,
Aged about 41 years,

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R/o Ankasandra,
Chelur Hobli, Gubbi Tq,
Tumkur District - 572 223.

... Petitioners

(By Sri Chandrachooda.M.B., Advocate)

AND:

The Asst. Commissioner-Cum-Land
Acquisition Officer,
Tumkur Sub Division,
Tumkur - 572 105.

... Respondent

(By Sri R.B.Sathyanarayana Singh, HCGP)

These writ petitions are filed under Articles 226 & 227 of the Constitution of India, praying to quash the order dated 20.2.2013 passed on IAs filed u/o 22 Rule 3 of CPC and U/O 22 Rule 9 of CPC and Section 5 of Limitation Act in LAC 255/2006 on the file of Senior Civil Judge and JMFC, Gubbi vide Annexure - F.

These writ petitions, coming on for preliminary hearing, this day, the Court made the following:

ORDER

Sri R.B.Sathyanarayana Singh, the learned High Court Government Pleader is directed to take notice for the respondent.

2. The petitioners have called into question, the order, dated 20.02.2013 (Annexure-F) passed by the Court of Senior Civil Judge and JMFC, Gubbi (Reference Court) in L.A.C.No.255/2006, dismissing the petitioners' three I.As. - for bringing the legal representatives of the claimant on record, for setting aside the abatement and for the condonation of delay in making the application for setting aside the abatement.

3. The facts of the case in brief are that the claimant's lands measuring 3 acres and 1 acre 10 guntas standing at Sy.Nos. 19 and 20 respectively of Boodathimmanahalli, Gubbi Taluk were acquired for the purpose of constructing a tank. As she was not satisfied with the award passed by the respondent, she sought the reference invoking Section 18 of the Land Acquisition Act, 1894 ('L.A. Act' for short). On the reference being sent, it was registered as L.A.C.No.255/2006 on the file of the Reference Court. She passed away on 19.09.2010 during the pendency of the said proceedings. On 3.10.2012, her legal representatives made the I.A.s for the purpose of coming on record. The Reference Court dismissed them mainly on the ground that they have not produced the heirship

certificate and that no acceptable explanation is offered for condoning the delay of over two years.

4. Sri M.B.Chandrachood, the learned counsel for the petitioners submits that this Court by its order, dated 12.12.2012 in W.P.No.49837-839/2012 has quashed the similar orders passed by the Reference Court. He submits that the respondent has awarded a paltry sum of `10,000/- for acquiring 4 acres 10 guntas of the lands.

5. Sri R.B.Sathyanarayana Singh, the learned High Court Government Pleader submits that as one of the legal representatives of the deceased claimant has identified the LTM of the claimant at the time of service of notice on her, the knowledge of the pendency of LAC proceedings can be attributed to them. He would therefore pray for the dismissal of these petitions.

6. It is trite that when the lands are compulsorily acquired for a public purpose, the landowner is entitled to get the fair and just compensation. If the reference applicant does not prosecute the matter diligently or if he dies and his legal representatives do not make the necessary applications within the prescribed period, to come on record, the respondent's award, which is only in the nature of an offer, does not attain the finality. That amounts to approving of the respondent's award determining the market value. As held by the apex Court in the case of KHAZAN SINGH (DEAD) BY LRS. v. UNION OF INDIA, reported in (2002) 2 SCC 242, the non-participation of a party would not confer jurisdiction on the Reference Court to dismiss the reference for default. It is impermissible to dismiss the reference for default.

7. When once a reference is made under Section 18 of the L.A. Act, then the Reference Court is bound to issue notice to all the persons interested in the reference and proceed to determine the reference under Section 20 and make an award under Section 26 of the L.A. Act, even if the person at whose instance the reference is made, fails to appear before the Reference Court or fails to produce evidence in support of his evidence. The Madhya Pradesh High Court in the case of MANGILAL v. STATE OF M.P., reported in AIR 1991 NOC 98 (MADHYA PRADESH) has held as follows:

"It is manifest that when once a reference under S.18 of the Land Acquisition Act is made, then the Court has to make an award under S.26 of the Act even if the person at whose instance the reference is made fails to appear before the Court or fails to produce evidence in support of his petition. In a reference proceeding under the provisions of S.18 of the Land Acquisition Act there cannot be any dismissal or abatement of the reference proceeding. A proceeding under S.18 is not a proceeding under the Civil Procedure Code and, therefore even by virtue of S.53 of the Land Acquisition Act it cannot be held that the provisions of the Code of Civil Procedure apply to the reference proceeding in all respect."

8. I may usefully refer to this Court's decision in the case of M.S.RAMIAH AND OTHERS v. SPECIAL LAND ACQUISITION OFFICER reported in AIR 1974 KARNATAK

122. The relevant portions of the said judgment are extracted hereinbelow:-

"3. When such a reference is made to the Court, it is the duty of the Court under the Act to determine the amount of compensation payable for the land or lands acquired. The Court has no jurisdiction to refuse to determine the amount of compensation even where the claimant remains absent or where he is present, fails to adduce evidence..... If on the basis of the data furnished in the award of the Land Acquisition Officer, the Court finds that the market value of the land has not been determined in accordance with settled principles of valuation, the Court has to determine the compensation in accordance with such principles on the basis of the data available on record. Therefore, the Court has to apply its mind and make an award and cannot blindly confirm the award of the Land Acquisition Officer."

9. It is also profitable to refer to this Court's decision in the case of CHANDRAMOULI @ CHANDRAKANT & ANOTHER v. THE SPECIAL LAND ACQUISITION OFFICER, reported in 1999 (2) KCCR 1129, wherein it is held that the Reference Court is legally bound to proceed to pass an award under Section 26 of the L.A. Act adjudicating the claimant's claim to the enhanced compensation, on the basis of whatever dependable material was available on record.

10. The Gujarat High Court's judgment in the case of ALIHUSAIN ABBASBHAI AND OTHERS v. COLLECTOR, PANCH MAHALS, reported in AIR 1967 GUJARAT 118 is of immense value in deciding this case. It has this to say in paragraph No.7 of its decision:-

"7. It is, therefore clear, that when the applicant died during the pendency of the reference, the petitioners as the heirs and legal representatives of the applicant were entitled to make an application to the court for bringing themselves on record under Order 22 Rule 3 sub-rule (1). But the question is whether they were bound to make such application within any particular period. It is only if a time for making such application was limited by law that the failure to make such application within the time so limited could invite the penalty of abatement under Order 22 Rule 3 sub- rule (2). The controversy between the parties, therefore centered round the question as to whether any time was limited by law for the purpose of making an application by the heirs of a deceased applicant in a pending reference for bringing themselves on record.It is, therefore, evident that a reference is neither a suit nor a deemed suit and Article 176 of the Limitation Act has, therefore, no application to it. If that Article does not apply, there is no other Article which can possibly be invoked on behalf of the Collector and it must be held that no time is limited by law for making of an application by the heirs of a deceased applicant for bringing themselves on record in the reference. Some reference was made to Article 181 which is a residuary Article providing a period of limitation for an application for which no period is provided elsewhere in the first Schedule but this Article provides a period of three years and even if it were applicable, the application of the petitioners in the present case for bringing themselves on record as heirs of Abbasbhai would be within time. The learned Civil Judge was, therefore, in error in holding that the reference had abated by reason of the petitioners having failed to make an application for bringing themselves on record within a period of ninety days from the date of death of

Abbasbhai and in dismissing the reference as having abated, he refused to exercise jurisdiction to entertain the reference which was vested in him by law."

11. The denial of fixation of the fair market value and pinning down the legal representatives of the deceased claimant to the amounts awarded by the respondent Land Acquisition Officer is not in the letter and spirit of the provisions contained in Part III of the L.A. Act. While considering the L.R. applications, etc., the approach of the Reference Court should be liberal so as to effectuate the intents of the L.A. Act.

12. In the result, I quash the impugned order. The petitioners are directed to produce the heirship certificates, etc. to show and satisfy the Reference Court that they are the legal heirs of the deceased claimant. If there is still any doubt about their being the legal representatives of the deceased claimant, it is open to the respondent to collect the necessary materials and place them on the record of the Reference Court. If the Reference Court is satisfied that the parties herein are indeed the legal representatives of the deceased claimant, it shall not throw them out only on the ground that they have made the time barred applications.

13. At the same time, it is also this Court's anxiety that the exchequer's interest should not suffer for no lapse on its part. To balance the equities and safeguard the interests of both the land-losers and of the Government, I deem it necessary and just to allow these petitions with the rider that if the parties herein (the legal representatives of the deceased claimant) succeed in getting the market value enhanced in L.A.C.No.255/2006, they are not entitled to the interest for the period from the date of the death of the claimant till the date of the making of the three applications in question. It is made clear that they are entitled to the interest for the period anterior to the date of the death of the claimant and posterior to the date of their making the three applications.

14. These petitions are accordingly allowed. No order as to costs.

Sd/-

JUDGE Cm/-